

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
AMAR KING,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity; New
York City Police Department Detective KENNETH
FAULKNER, in his individual capacity,

Defendants.
----- X

VERIFIED COMPLAINT

Index No.

Plaintiff AMAR KING, by and through his attorneys, Bernstein Clarke & Moskowitz
PLLC, as and for his complaint alleges as follows:

JURISDICTION

1. This is a civil rights action brought under federal and state law. Plaintiff asserts claims pursuant to 42 U.S.C. § 1983 for violations of his rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York State common law and for violations of his rights under Article 1 § 12 of the New York State Constitution.

2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

3. Venue is proper in New York County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and New York County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

5. Plaintiff AMAR KING is a citizen of the United States and of the State of New York.

6. At all relevant times, Plaintiff was a resident of New York County, New York.

7. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the New York City Police Department (“NYPD”).

8. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

9. Upon information and belief, at all relevant times, defendant NYPD Detective KENNETH FAULKNER was and is a citizen of the United States and the State of New York.

10. At all relevant times, FAULKNER was employed by the City and acted under color of law.

11. At all relevant times, FAULKNER acted in the course and scope of his duties and authority as an officer, agent, servant, and employee of the NYPD and the City.

12. At all relevant times, FAULKNER was a detective in the 32nd Precinct, which is located in New York County.

13. At all relevant times, FAULKNER violated plaintiff's clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution and Article 1 § 12 of the New York State Constitution, of which a reasonable law enforcement officer in FAULKNER's circumstances would have known.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

14. Plaintiff served his Notice of Claim upon the City of New York by electronic delivery as prescribed by the Office of the New York City Comptroller on November 23, 2016, within ninety days of certain of plaintiff's claims.

15. Defendant City acknowledged receipt of plaintiff's claim and assigned it claim number 2016PI033006.

16. On or about February 7, 2017, Defendant City conducted an examination of Plaintiff pursuant to New York General Municipal Law § 50-h.

17. Plaintiff served a Supplemental Notice of Claim upon the City of New York on or about June 21, 2017, notifying the Comptroller's Office that the criminal charges against him were dismissed on March 23, 2017. Plaintiff served the Supplemental Notice of Claim by hand delivering a copy of same to Room 1225 at 1 Centre Street.

18. Following receipt of Plaintiff's Supplemental Notice of Claim, the City did not serve a demand to conduct a further examination of Plaintiff pursuant to General Municipal Law § 50-h.

19. More than thirty days have elapsed since service of Plaintiff's notice of claim and supplemental notice of claim and adjustment or payment of Plaintiff's claim has been neglected.

20. This action is filed within one-year and ninety-days after the events giving rise to plaintiff's claims.

STATEMENT OF FACTS

21. On August 29, 2016, NYPD officers came to Plaintiff's home and told him that Defendant NYPD Detective Kenneth Faulkner wanted to speak with him.

22. They placed Plaintiff in handcuffs and transported him to the 32nd Precinct.

23. At the 32nd Precinct, Detective Faulkner interrogated Plaintiff for several hours on and off.

24. Initially, Plaintiff had no idea why he had been brought to the 32nd Precinct.

25. Eventually, Detective Faulkner told Plaintiff that a man named Ernest Brown had accused Plaintiff of robbing him at gunpoint in Plaintiff's apartment on Wednesday, August 24, 2016, at about 11:00 a.m.

26. Detective Faulkner told Plaintiff that Ernest Brown had claimed that after Plaintiff robbed him, Plaintiff walked Mr. Brown outside, at gunpoint, hailed a cab and put Mr. Brown in the cab to go home.

27. Plaintiff denied robbing Mr. Brown.

28. Plaintiff also pointed out to Detective Faulkner that Mr. Brown's allegations – that he was robbed inside of another person's apartment and that person then walked him outside, at gun point, to the corner of Eighth Avenue and 135th Street in broad daylight on a weekday morning – sounded ridiculous.

29. Plaintiff told Detective Faulkner that he did not know the name Ernest Brown, but came to learn that Ernest Brown was a person Plaintiff knew as "Angelo."

30. Angelo, or Ernest Brown, had a relationship with a friend of the Plaintiff and was apparently unhappy that Plaintiff was allowing the friend to stay with him.

31. The morning of August 24, 2016, Mr. Brown had come to Plaintiff's apartment

while Plaintiff was away and confronted Plaintiff's friend.

32. Upon information and belief, Plaintiff's friend called 911.

33. Police officers responded to Plaintiff's apartment, and when he returned to his apartment, Plaintiff spoke with them.

34. On August 29, 2016, at the 32nd Precinct, Plaintiff told Detective Faulkner that all of this had happened on the morning of August 24 when Mr. Brown claimed he was robbed inside of Plaintiff's apartment.

35. Plaintiff also told Detective Faulkner that his building had new surveillance cameras that would have captured everything that happened in front of his apartment building that morning.

36. Upon information and belief, the cameras would show Plaintiff left his apartment early that morning; Ernest Brown arrived after that, while Plaintiff was away; Ernest Brown later left the building; police arrived; and then Plaintiff returned to the building.

37. Detective Faulkner said that he would go look at the building surveillance video.

38. He left and when he came back, he said that he had watched the surveillance video.

39. Upon information and belief, Detective Faulkner received a copy of the surveillance video from Plaintiff's building manager.

40. Plaintiff also told Detective Faulkner that at the time Mr. Brown claimed he had been robbed, Plaintiff was at a bodega on 136th Street and 7th Avenue getting breakfast.

41. Plaintiff told Detective Faulkner that the video at the bodega would confirm that.

42. Detective Faulkner took Plaintiff's cell phone and, upon information and belief, reviewed it.

43. Upon information and belief, Detective Faulker saw that Ernest Brown had called

Plaintiff multiple times and had sent Plaintiff multiple threatening text messages.

44. Under these circumstances, any reasonable officer in Detective Faulkner's position would have known that Ernest Brown had made a false report.

45. Any reasonable investigating officer would have made further efforts to investigate Mr. Brown's allegations before charging Plaintiff with serious crimes.

46. Nonetheless, Detective Faulkner initiated criminal charges against Plaintiff.

47. The conduct of Detective Faulkner deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper investigatory procedures.

48. On August 30, 2016, Plaintiff was charged in New York County Criminal Court under Docket No. 2016NY052572 with two felony robbery charges, a felony gun possession charge, and a misdemeanor menacing charge.

49. Because of the serious nature of the charges, bail was set for Plaintiff in the amount of \$10,000, which he could not make.

50. Plaintiff was held in custody until on or about September 2, 2016.

51. Plaintiff was forced to return to court on November 2, 2016 and January 30, 2017.

52. On March 23, 2017, the charges against Plaintiff were dismissed by the District Attorney.

53. As a result of the foregoing, Plaintiff suffered, *inter alia*, the loss of liberty, psychological injuries, pain and suffering, emotional distress, financial loss, and the deprivation of his constitutional rights.

FIRST CAUSE OF ACTION**42 U.S.C. § 1983 – Violations of the Fourth and Fourteenth Amendments**

54. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

55. In committing the acts and omissions complained of herein, Defendant Faulkner acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable seizure of his person;
- b. the right to be free from false imprisonment, that being wrongful detention without legal justification, and of which detention plaintiff was aware and to which he did not consent;
- c. the right to be free from deprivation of liberty without due process of law; and
- d. the right to be free from criminal prosecution and detention without probable cause.

56. As a direct and proximate result of Defendant Faulkner's deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

57. The unlawful conduct of Defendant Faulkner was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION**False Imprisonment**

58. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

59. Defendant Faulkner, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or legal justification,

60. Plaintiff was aware of this detention and did not consent to it.

61. Defendant Faulkner committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

62. The City is vicariously liable for the conduct of Defendant Faulkner.

THIRD CAUSE OF ACTION
Malicious Prosecution

63. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

64. A criminal proceeding was commenced against plaintiff in Bronx County Criminal Court.

65. Defendant Faulkner was responsible for initiating the criminal proceeding.

66. Defendant Faulkner was aware there was not probable cause that plaintiff had robbed Ernest Brown.

67. The conduct of Defendant Faulkner deviated so egregiously from acceptable police practice as to demonstrate an intentional or reckless disregard for proper procedure.

68. Defendant Faulkner failed to make further inquiry when a reasonable officer would have done so.

69. The criminal proceeding was terminated in plaintiff's favor when the charges against him were dismissed.

70. The proceeding was brought with malice, which is shown by the above-stated facts establishing a lack of probable cause, and that Defendant Faulkner's conduct was reckless or grossly negligent.

71. Defendant Faulkner committed the foregoing acts intentionally, willfully, and with

malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

72. The City is vicariously liable for the conduct of Defendant Faulkner.

FOURTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

73. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

74. Defendant Faulkner, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

75. Defendant Faulkner committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

76. The City is vicariously liable for the conduct of Defendant Faulkner.

FIFTH CAUSE OF ACTION
New York State Constitutional Violations

77. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

78. Defendant Faulkner subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 § 12 of the New York State Constitution.

79. As a direct and proximate result of Defendant Faulkner's deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

80. The City is vicariously liable for the conduct of Defendant Faulkner.

SIXTH CAUSE OF ACTION
Negligence

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in foregoing paragraphs with the same force and effect as if fully set forth herein.

82. Defendant Faulkner owed Plaintiff a duty of care, including the duty to exercise due care in the course of his duties as an NYPD detective.

83. Defendant Faulkner, by the foregoing acts, negligently or recklessly failed to use due care in the performance of his duties in that he failed to perform his duties with the degree of care that a reasonably prudent and careful detective would have used under similar circumstances

84. Plaintiff's injuries herein were caused by Defendant Faulkner's breach of the duty of care he owed plaintiff.

85. All of these acts were performed without any negligence on the part of plaintiff and were the proximate cause of injuries to plaintiff.

86. The City is vicariously liable for the negligence of the individual defendants.

SEVENTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

87. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

88. As a police officer acting in the performance of his duties, Defendant Faulkner owed plaintiff a duty of care.

89. In breach of that duty, Defendant Faulkner endangered plaintiff's safety and caused him to fear for his safety.

90. As a result, plaintiff suffered emotional distress.

91. The City is vicariously liable for the negligence of the individual defendants.

EIGHTH CAUSE OF ACTION
Gross Negligence

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in foregoing paragraphs with the same force and effect as if fully set forth herein.

93. Plaintiff's injuries herein were caused by the gross negligence of Defendant Faulkner.

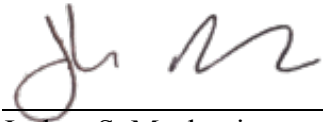
94. The City is vicariously liable for the negligence of the individual defendants.

WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against Defendant Faulkner in an amount to be determined by a jury;
- (C) reasonable attorneys' fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: New York, New York
November 27, 2017

BERNSTEIN CLARKE & MOSKOVITZ PLLC
11 Park Place, Suite 914
New York, New York 10007
(212) 321-0087

By: 

Joshua S. Moskowitz

Attorneys for Plaintiff Amar King

